

## Bhajan Lal and Anr. v. Executive Engineer, Electricity Distribution Khand-1, U.P. and Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 17 October 2011 · 2011 SCC OnLine All 2381 : (2012) 3 All LJ 471 · Writ. P. Bench No. 8693 (M/B) of 2011 · **Writ petition disposed of (the fresh assessment having been paid) with directions on the manner of service of the provisional-assessment notice**

### HEADNOTE

The provisional-assessment bill and show-cause notice served under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 must be served 'under proper receipt' by an authentic mode; service by ordinary post raises no presumption of service and does not suffice. Clause 6.8(b) requires the assessing officer, on concluding that unauthorised use has occurred, to serve the provisional-assessment bill with a show-cause notice giving 15 clear working days for reply, fixing a date of hearing. Service must be ensured by registered post and personal service simultaneously, and, if both fail, by newspaper publication (whereafter the authority may proceed ex parte); non-service violates natural justice (Article 14) and vitiates the proceedings. Though the petitioners had by then paid a fresh assessment (leaving nothing to adjudicate), the Court laid down the service requirement and directed the Chairman, U.P. Power Corporation to issue a circular ensuring compliance.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.8

Provisional-assessment bill and show-cause notice must be served under proper receipt by an authentic mode; ordinary post insufficient

#### QUESTION

Is service of a Clause 6.8(b) provisional-assessment bill and show-cause notice by ordinary post sufficient, or must an authentic mode of service be ensured?

#### HOLDING

Ordinary post does not suffice. Clause 6.8(b) requires service of the provisional-assessment bill with a show-cause notice 'under proper receipt', giving 15 clear working days for reply and fixing a hearing; the assessing authority must ensure actual service by registered post and personal service simultaneously and, if both fail, by newspaper publication (after which it may proceed ex parte). Sending notice by ordinary post raises no presumption of service; non-compliance violates natural justice (Article 14) and vitiates the assessment. The Court directed the Chairman, U.P. Power Corporation to issue a circular ensuring such service. ¶ 7-15

#### LIMITING FACTS

Recovery notice issued without the petitioners being served; EE said notices were sent by ordinary post (denied); a fresh assessment was later paid, leaving nothing to adjudicate but the service question.

### PRINCIPLE TAGS

**proper-service-of-provisional-assessment-notice-clause-6.8** A Clause 6.8(b) provisional-assessment/show-cause notice must be served by an authentic mode (registered post + personal service, then newspaper publication); ordinary post does not establish service. ¶ 8-11

**opportunity-before-final-assessment** Actual service of the provisional assessment and a real opportunity to object are essential to natural justice before recovery in a UUE case. ¶ 10-11

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — THE MERITS OF THE ASSESSMENT

The fresh assessment had been paid, so nothing survived for adjudication; the Court laid down only the service requirement.

¶ 12-13

*A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.*